

19NWLC39774 19NWLC39774

County: los-angeles

Division: Civil Law and Motion

Department: Y

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Case Number: 19NWLC39774 Hearing Date: August 6, 2026 Dept: Y

9NWLC39774: PORTFOLIO RECOVERY ASSOCIATES, LLC vs SYLVIA RIVERA

Tentative Ruling:

The Court has read and considered Defendant Sylvia Rivera's Motion to Vacate and Void Judgment filed on June 8, 2026. Defendant initially set the Motion for hearing on July 2, 2026. The Court continued the hearing to August 6, 2026 to ensure proper notice to Plaintiff Portfolio Recovery Associates, LLC.

The Court has read and considered Plaintiff Portfolio Recovery Associates, LLC's Opposition filed on July 29, 2026, and has reviewed the relevant court records.

The record reflects that the Clerk entered a Request for Entry of Default on March 24, 2020, and the Court entered Default Judgment on March 27, 2020. A Writ of Execution issued on October 10, 2025.

Defendant contends the judgment is void because she was never served with the Summons and Complaint. She identifies three addresses where she lived during the relevant period and asserts she did not reside at the address where service allegedly occurred.

A Proof of Service of Summons by a registered process server, reflecting personal service, was filed on October 17, 2019, creating a presumption of service under Evidence Code section 647. The Proof of Service states that "Sylvia Rivera" was personally served on October 16, 2019, at 617 N. Exton Ave., Inglewood, CA 90302, and describes the person served as a Hispanic female, age 35–45, 5'4"–5'6", weighing 160–180 lbs.

In a declaration signed under penalty of perjury, Defendant states she was never served with the Summons and Complaint. She identifies residences or addresses associated with her during the relevant period on Howland Dr. in Inglewood, 6th Ave. in Los Angeles, and Regent St. in Inglewood. None matches the Exton Ave. address where service purportedly occurred. One address provided by Defendant matches the address on monthly statements attached to the Complaint (Howland Dr.), but that is not the address used by the process server. Defendant further declares she had no actual notice of this lawsuit until she received notice from her employer of a wage garnishment proceeding on or about January 11, 2026. On this record, the Court finds Defendant has rebutted the presumption of service.

Under Code of Civil Procedure section 473(d), the Court may set aside any void judgment or order, and such a motion may be brought at any time after judgment. In *California Capital Insurance Company v. Hoehn* (2024) 17 Cal.5th 207, the California Supreme Court held that a motion to vacate a void judgment for improper service under section 473(d) is not

subject to an arbitrary two-year time limit. Defendant's Motion is therefore timely.

Code of Civil Procedure section 128 also authorizes the Court to take appropriate action in the interests of justice.

Accordingly, the Court GRANTS Defendant's Motion and vacates and sets aside the Default Judgment entered on March 27, 2020. The Default Judgment is void for lack of proper service. The Court also vacates and sets aside the Writ of Execution issued on October 10, 2025. The Court stays any further wage garnishment and orders amounts currently held by the Sheriff returned to Defendant.

Defendant is granted 30 days leave to file a responsive pleading.

The Court sets a further OSC Re Status of Responsive Pleading on May 7, 2027 at 8:30 a.m. in Department Y of the Norwalk Courthouse.

Clerk to give notice.